

CASE SUMMARY

State v. Sharad Rana & Anr.

Ct. Case No. 938/2020 | CNR DLSW01-007380-2020 | Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi

COURT	Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi
JUDGE	Ms. Harleen Singh, Addl. Sessions Judge (Electricity)
DATE OF JUDGMENT	date of judgment (date of inspection / offence: 25 February 2020)
PARTIES	State (BSES Rajdhani Power Ltd.) v. (1) Sharad Rana (alleged user) and (2) Savitri Devi (registered consumer)
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Acquitted — complaint dismissed. The laboratory officers who tested the meter were never examined, the lab report was not proved, and a burnt meter was equated with a tampered one without basis. The accused stands acquitted of the charge under Sections 135, 138, 150, 151 and 154 of the Electricity Act, 2003.

CHARGE BEFORE THE COURT

Whether the accused tampered with the meter so as to abstract electricity, attracting Sections 135, 138, 150, 151 and 154 of the Electricity Act, 2003; and whether the prosecution proved the alleged tampering through legally admissible, internally consistent evidence.

FACTS

BSES Rajdhani alleged that the meter was “abnormally burnt” and tampered, and relied on a laboratory test. The lab officers who conducted the test (named Kailash Sahu and Pankaj Kumar Sinha) were not examined; the lab report was not proved through them; and the “speaking order” did no more than reproduce the lab report without independent reasoning. The complaint lacked material particulars, the test date shifted from 25.02.2020 to 04.03.2020 without notice to the accused, the connected load differed between the complaint (11.753 KW) and the load report (9.003 KW), and the Board Resolution authorising the CEO to delegate the complaint was not placed on record.

On a complaint under Sections 135/138/150/151/154, both accused pleaded not guilty. In cross-examination the contradictions emerged and the material lab witnesses were found to have been withheld. Under Section 313 Cr.P.C. the accused denied the allegations.

REASONING OF THE COURT

HEADNOTE

Meter-tampering theft proved only by a laboratory report collapses where the testing officers are not examined and the report is not proved; a “burnt” meter is not necessarily a “tampered” meter, and a speaking order that merely reproduces the lab report, unsupported by the licensee’s proof of its officer’s authority to complain, cannot sustain a conviction.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

The testing officers were withheld and the lab report unproved. The laboratory officers who tested the meter were not examined and the lab report was never proved through them; the central plank of a meter-tampering case — the scientific finding of tampering — was therefore not in evidence at all.

A burnt meter is not a tampered meter. The Court held that an “abnormally burnt” meter is not necessarily a tampered one, and the speaking order offered no independent reasoning — merely reproducing the lab report — so no reasoned finding of tampering existed (cf. *Narinder Aggarwal v. BSES Rajdhani*).

Authorisation, particulars and load all failed. The Board Resolution authorising the CEO/complainant was not on record; the complaint lacked material particulars; the test date was changed without notice; and the connected load differed between the complaint and the load report — a cumulation of defects fatal to the charge.

The cumulative doubt entitled the accused to acquittal. With the testing officers unexamined, the lab report unproved, a burnt meter equated with a tampered one without basis, and the CEO’s authority to complain unproved, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Sections 135, 138, 150, 151 and 154 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user’s identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section

65B, or the officer's authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — the testing officers unexamined, the lab report unproved, a burnt meter equated with a tampered one without basis, and the CEO's authority to complain unproved — the charge under Sections 135, 138, 150, 151 and 154 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

A meter-tampering acquittal on withheld lab witnesses and an unreasoned speaking order. Four propositions stand out:

- **A meter-tampering case stands or falls on the lab witnesses.** If the testing officers are not examined and the report is not proved, there is no admissible finding of tampering.
- **'Burnt' is not 'tampered'.** The licensee must prove tampering; a burnt meter may have many innocent causes (*Narinder Aggarwal*).
- **A speaking order must reason, not recite.** Reproducing the lab report without independent reasoning is no speaking order at all.
- **Unproved authority to complain is by itself a serious gap.** Absent the Board Resolution proving the CEO's authority to delegate, the very competence of the complaint is in doubt.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Narinder Aggarwal v. BSES Rajdhani Power Ltd.</i> Delhi HC, W.P.(C) 1789/2011	An assessment/speaking order must record the authority's own independent reasoning; a burnt meter is not necessarily a tampered meter.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.